

GAHC010077492023



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THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : I.A.(Crl.)/317/2023

MD. DILDAR HUSSAIN
S/O ABUL HUSSAIN
VILL.- MAZARCHUBA
P.O. AND P.S.- ORANG
DIST.- UDALGURI
ASSAM
PIN- 784114.

VERSUS

THE STATE OF ASSAM AND ANR.
REP. BY THE P.P.
ASSAM.

2:MD. MANURUDDIN
S/O LT. ROJOB ALI

VILL.- MAJORCHUBA

P.O. AND P.S.- ORANG

DIST.- UDALGURI
ASSAM
PIN- 784114.

Advocate for : MR. S CHAUHAN
Advocate for : PP
ASSAM appearing for THE STATE OF ASSAM AND ANR.

**BEFORE
HONOURABLE MR. JUSTICE MANISH CHOUDHURY**

ORDER

Date : 08.08.2025

Heard Mr. S. Chauhan, learned counsel for the applicant-appellant and Mr. R.R. Kaushik, learned Additional Public Prosecutor for the opposite party no. 1, State of Assam.

2. The instant application is preferred by the applicant-appellant for suspension of execution of the sentence passed against him and for his release on bail.

3. The applicant as the appellant has preferred the accompanying criminal appeal against a Judgment and Order dated 21.03.2023 passed by the Court of learned Assistant Sessions Judge, Udalguri [‘the Trial Court’, for short] in Sessions Case no. 40/2021. The criminal appeal has already been admitted for hearing. By the Judgment and Order dated 21.03.2023, the applicant-appellant has been convicted for the offences under Section 326 and Section 447, Indian Penal Code [IPC]. For the offence under Section 326, IPC, the applicant-appellant has been sentenced to undergo rigorous imprisonment for 10 years and to pay a fine of Rs. 10,000/-, in default of payment of fine, to undergo simple imprisonment for 6 months. For the offence under Section 447, IPC, the applicant-appellant has been sentenced to undergo simple imprisonment for 3 months and to pay a fine of Rs. 500/-, in default of payment of fine, to undergo simple imprisonment for another month. The sentences are ordered to run concurrently.

4. It is submitted by the learned counsel for the applicant-appellant that since the Judgment and Order dated 21.03.2023 of conviction and sentence,

the applicant-appellant is undergoing the terms of sentence and as on date, he has spent more than 2 years 6 months including the period of custody undergone at the time of investigation. He has further submitted that there is discrepancy in the testimony of two main prosecution witnesses, P.W.1 & P.W.2.

5. The Hon'ble Supreme Court of India in Bhagwan Rama Shinde Gosai vs. State of Gujarat reported in [1999] 4 SCC 421, has held that when a convicted person is sentenced to a fixed period of sentence and when he files an appeal under any statutory right, suspension of sentence can be considered by the appellate court liberally unless there are exceptional circumstances.

6. Having regard to the discrepancies in the testimony of P.W.1 & P.W.2 and the period of sentence already undergone, I am of the considered view that the applicant-appellant has made out a prima facie case for suspension of sentence pending disposal of the appeal, which has already been admitted for hearing.

7. It is, therefore, ordered that pending disposal of appeal, execution of the sentence passed against the applicant-appellant shall remain suspended and the applicant-appellant is allowed to be released on bail subject to furnishing a bail bond of Rs. 10,000/- with one surety of the like amount to the satisfaction of the Trial Court.

8. The interlocutory application stands disposed of in the afore-stated terms.

JUDGE

Comparing Assistant